

I. Of the different kinds of powers.

1. **Powers legal and equitable distinguished.** — In applying the doctrine of powers to the subject of trusts it may be useful to regard powers as either *legal* or *equitable*: the former, such as operate upon the legal estate, and so are matter of cognizance in Courts of common law; the latter, such as affect the equitable interest only, and so fall exclusively under the notice of Courts of equity. Thus, if lands be limited to the use of A. for life, remainder to B. and his heirs, and a power operating under the Statute of Uses be given to C., the execution of the power works a conveyance of the legal estate; but if lands be limited to the use of A. and his heirs upon trust for B. for life, and after his death for C. and his heirs, and a power not operating under the Statute of Uses be given either to the trustee or to the *cestui que trust*, the execution of such a power will have no effect at law, but will merely serve to transfer the beneficial interest in equity, and may therefore be designated by the name of an equitable power.

2. **Equitable powers, whether annexed to the estate or simply collateral.** — An *equitable*, the same as a legal power, may be either annexed to the estate or be simply collateral; but whether it shall be taken as the one or the other will depend on the question, whether *the donee of [*599] the power be possessed of the *equitable*, that is, of the *beneficial* interest or not. Thus, where a testator devised

execute a trust the courts will do it; *Ferre v. American Board*, 53 Vt. 171; but this does not apply to purely discretionary powers; *Eldredge v. Heard*, 106 Mass. 582; *Smith v. Wildman*, 37 Conn. 384; *Littlefield v. Cole*, 33 Me. 552; *Mason v. Mason*, 4 Sandf. Ch. 623; except in special cases; *Pulpress v. African Church*, 48 Pa. St. 210; a trustee may exercise a discretionary power, though he has agreed upon his conduct with the settlor; *Library Co. v. Williams*, 73 Pa. St. 249.

A power is terminated when it becomes impossible to execute it; *Hetzel v. Barber*, 69 N. Y. 1.

As to what will be considered an execution of a power, see *Hamilton v. Crosby*, 32 Conn. 342; *Bingham's App.* 64 Pa. St. 350; *Amory v. Meredith*, 7 Allen, 397; *Collier's Will*, 40 Mo. 287; *Clark v. Hornthal*, 47 Miss. 434.

If a power is a condition precedent, as the right to assent to a marriage, everything else will await and depend upon its execution; *Taylor v. Mason*, 9 Wheat. 350; *Hawkins v. Skeggs*, 10 Humph. 31; *Phillips v. Medbury*, 7 Conn. 568.